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General Comment

Many regulations on AI *should* be burdensome in order to ensure that it is used in beneficial ways. In particular, regulations should make it clear that reliance on AI cannot be used as a means to avoid liability in cases where a human being making the same decision would be considered negligent; it cannot be used as a defense against charges of discrimination, where bias in the training data produces an identifiable bias against groups having various protected characteristics, such as race or disability; and it cannot be used as a defense against copyright infringement, where the unauthorized use of copyrighted work in training datasets results in economic harm (whether immediate and provable or the speculative long-term result) to authors and other copyright owners. If AI firms believe they can't compensate authors fairly for the use of their data and still turn a profit, then that means that the resulting AI tools are a net loss to society once externalities are properly accounted for, and so the loss of these tools is a net gain for humanity.